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Crl.M.P.Nos.13611, 14004 and 14652 of 2026
in Crl. A. Nos. 925, 948 and 983 of 2026

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED : 10.08.2026

CORAM

THE HON'BLE MR.JUSTICE M.NIRMAL KUMAR

Crl. M.P. Nos. 13611, 14004 and 14652 of 2026

in

Crl. A. Nos. 925, 948 and 983 of 2026

Sakthi @ Sathiyamoorthi

... Petitioner
in Crl.M.P.No.13611/2026

S. Senthil

... Petitioner
in Crl.M.P.No.14004/2026

Ramesh

... Petitioner
in Crl.M.P.No.14652/2026

Vs.

The State,
Represented by Inspector of Police,
Tiruchengode Town Police Station,
Tiruchengode.
(Crime No.466 of 2002)

... Respondent
in Crl.M.P.Nos.13611 & 14004 2026

State Represented by,
The Inspector of Police,
Tiruchengode Town Police Station,
Namakkal District.
(Crime No.466 of 2002)

... Respondent
in Crl.M.P.No.14652/2026



Crl.M.P.Nos.13611, 14004 and 14652 of 2026
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Common Prayer: Criminal Miscellaneous Petition filed under Section 430(1) of BNSS, to suspend the sentence imposed by the learned II Additional District and Sessions Judge, Tiruchengode in S.C.No.108 of 2019 dated 15.07.2026 and enlarge the petitioners on bail pending disposal of the criminal appeals.

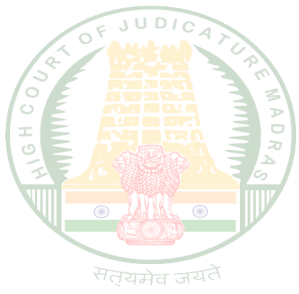
For Petitioners: Mr. R. Thirumoorthy in Crl.M.P.No.13611/2026
Mr.S. Ashok Kumar in Crl.M.P.No.14004/2026
for Mr.V.Johnson Yuvaraj
Mr.S. Ashok Kumar in Crl.M.P.No.14652/2026
for Mr.G.Harikrishnaa

For Respondents : Ms. Sharada Vivek,
Government Advocate (Crl.Side)
Assisted by Mr. M. Arul Raj

COMMON ORDER

Crl.M.P.No.13611 of 2026 in Crl.A.No.925 of 2026 is filed by A6.
Crl.M.P.No.14004 of 2026 in Crl.A.No.948 of 2026 is filed by A3.
Crl.M.P.No.14652 of 2026 in Crl.A.No.983 of 2026 is filed by A9.

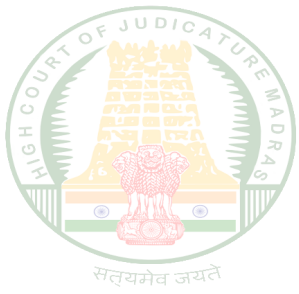
2. Since all the three appeals arises out of S.C.No.108 of 2019, all the three suspension of sentence / bail applications are taken up together.



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3. The learned counsel for A6 submitted that, in this case, the petitioners are said to have been present along with the other accused and there is no specific overt act attributed to them, except for the recovery of a wooden log. He further submitted that no test identification parade was conducted and for the first time in this case, the accused were identified in the docks, that too after several years. He further submitted that in this case, A1 and A4 have already been granted bail by this Court.

4. The learned counsel for A3 and A9 submitted that in this case, A3 is alleged to have assaulted PW2 and thereby causing simple injury. The medical evidence confirms that PW2 sustained simple injury. Further, PW2 had not rushed to the doctor immediately after the alleged assault, instead, they went to the police station, lodged a complaint and thereafter, on the advice of the police, went to the hospital. As regards A9, he is said to have been present along with the other accused as part of the group, but no specific overt act has been attributed to him. No test identification parade was conducted and all the accused were identified only in the docks, that too after after considerable delay. Hence, prayed for bail.



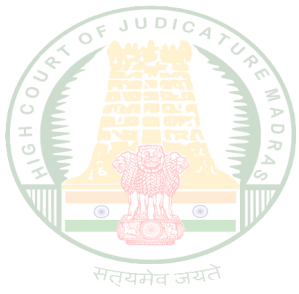
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5. The learned Government Advocate strongly opposed the petitioners

contention and submitted that PW1 to PW5 are the eyewitnesses and PW1 and PW2 are the injured witnesses, who had gone to the doctor and received treatment. Though the injuries might be simple in nature, all the accused had joined together as a group and committed dacoity, entered the house of the victim, forcibly broke open the door, used knife, iron pipe and wooden log and placed knife on the neck of the defacto complainant. They also obtained his signature on blank stamp papers and a green sheet and thereafter, using the same, lodged a false complaint against the defacto complainant. Further, civil suit pending with regard to a money transaction, A1, who is a doctor and also a money lender, had hired these accused to commit dacoity. Hence, she strongly opposed the petitions.

6. Considering the submissions and on perusal of the materials, this Court, while considering the bail application filed by A1 and A4, had observed in paragraphs 6 and 11, as follows:

“6. He further submitted that PW2, brother of PW1 admits that a case was registered at the instance of the petitioner by District Crime Branch, Namakkal against Pandurangan, who was arrested and was in jail. PW1, PW2 and others obtained anticipatory bail in

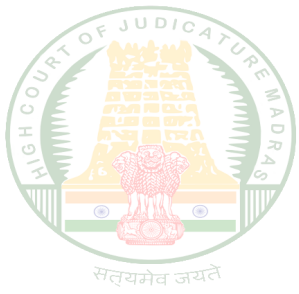


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*that case. The primary allegation against A1 is that he brought henchmen and musclemen, forced the defacto complainant Pandurangan to sign in blank green papers and to evict him from the property. PW3, another son, reiterates the statement given by PW1 and PW2 and confirms the loan obtained by his father from A1 and failed to repay the loan. PW4, daughter of defacto complainant and sister of PW1 to PW3, confirms the loan of her father. PW5, husband of PW4 also confirms the loan particulars. PW1 to PW5 given a parrot-like version of the incident which is said to have taken place on 02.06.2002 PW6 and PW7 are neighbours of Pandurangan, not supported the case of the prosecution and declared hostile. PW8 a passer-by, found a crowd standing near the Pandurangan's house and he was declared hostile. PW9 and PW10 Village Administrative Officers, who speak about the arrest, confession and recovery, they were also declared hostile. PW11 to PW13 also declared hostile. PW14 is the Doctor who treated PW1 and PW2. PW15 is the Investigating Officer. Thus, in this case, except the family members of Pandurangan, namely PW1 to PW5 who are motivated witnesses, given an exaggerated version for a civil dispute and for forcing the Pandurangan to vacate the property which was settled for the loan obtained by the defacto complainant. Thus, a civil case has been magnified and given a criminal colour. He referred to the judgment of the Apex Court in the case of **Mohammed Wajid and another vs. State of U.P. and others** reported in **2023 SCC Online SC 951** and submitted that in an identical situation the Apex Court considered the import on Sections 390, 391 and 395 IPC and highlighted conditions attracting offence*



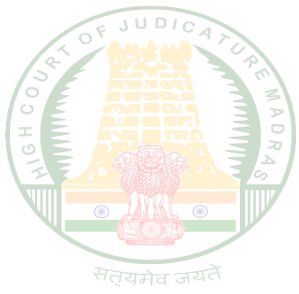
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of dacoity, and observed attempts to cause to any person death or hurt or wrongful restraint or fear of instant death or instant hurt or instant wrongful restraint must be “for that end”. In this case, the admitted position is that the accused went to the defacto complainant’s house to vacate the squatters on the property and not for any robbery or causing robbery. Thus “for that end” will be the factor to decide, whether the Act would amount to dacoity or otherwise. Thus from the facts of the above case, the primary object is only to forcibly evict Pandurangan squatting on the property.

11. Considering the submissions made and on perusal of the materials, it is seen that Pandurangan, father of PW1 to PW4 obtained loan from A1 and failed to repay the same. A1 obtained power of attorney and signature in bond papers by compulsion and using the same, settled the property amongst his family members, A1 forcing Pandurangan to vacate the property, all are not in dispute. A civil suit filed by Pandurangan in O.S.No.308 of 1999 before the District Munsif Court, Tiruchengode not to disturb his peaceful possession. He also filed a partition suit for the same property knowing well that already a civil suit is pending seeking injunction and declaration against A1 who is claiming right over the property. It is also seen that Pandurangan was arrested by District Crime Branch on a complaint given by A1. Thus, there was animosity between the A1 and Pandurangan and his family members. Thus, A1 used force to vacate Pandurangan and his family, at that time, the alleged occurrence is said to have taken place primarily to vacate Pandurangan from the property. In view of the above factual position, it cannot partake the definition of robbery, extortion and



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dacoity.”

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7. Further, in this case, there has been some assault, but not with the intention to commit dacoity. The primary allegation against the petitioners is that they have committed dacoity. In view of the fact that the object of dacoity is not established and that the injuries sustained are simple in nature, this Court is inclined to grant the relief of suspension of sentence to the petitioners.

8. Accordingly, the substantive sentence of imprisonment imposed on the petitioners is suspended till the disposal of the appeal and they are ordered to be enlarged on bail, on condition that they shall execute a bond for a sum of Rs.10,000/- each (Rupees Ten thousand only) with two sureties, each for a like sum to the satisfaction of the trial Court.

9. Further, the petitioners shall appear before the Trial Court once in three months on the first working day at 10.30 a.m., until the disposal of the appeals and if they are not able to appear before the Trial Court on that day, they shall make arrangements to file an application under Section 317



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Cr.P.C. and shall appear before the Trial Court on any other day in lieu of the
date of their absence as directed by the Trial Court.

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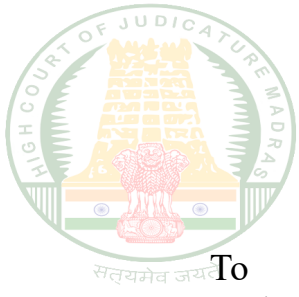
10. On breach of any of the aforesaid conditions, the learned Judicial Magistrate/Trial Court is entitled to take appropriate action against the petitioner in accordance with law as if the conditions have been imposed and the petitioner released on bail by the learned Magistrate/Trial Court himself as laid down by the Hon'ble Supreme Court in ***P.K.Shaji vs. State of Kerala*** [(2005)AIR SCW 5560];

11. Accordingly, these Criminal Miscellaneous Petition are ordered.

10.08.2026

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Note: Issue order copy on 11.08.2026

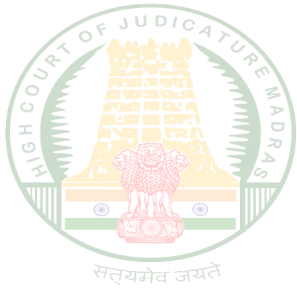


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To

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1. The II Additional District and Sessions Judge,
Tiruchengode.
2. The Inspector of Police,
Tiruchengode Town Police Station,
Tiruchengode.
3. The Inspector of Police,
Tiruchengode Town Police Station,
Namakkal District.
4. The Superintendent,
Central Prison, Salem.
5. The Public Prosecutor,
High Court of Madras.



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